Fort Bend County District Court

Cause No. 2023-CV-0034

Michael Gilbert, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	12-23-23
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defendant denies each and every allegation contained in Plaintiff's Original Petition, except those specifcially admitted herein, and demands strict proof thereof as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant generally denies the allegations and requests that Plaintiff be required to prove the charges and allegations against Defendant by a preponderance of the evidence.

As affirmative defenses, Defednant asserts the following. First, the collision was a low-speed event, and the injuries claimed by Plaintiff were not proximately caused by the impact but instead by pre-existing conditions or unrelated intervening causes. Second, Plaintiff failed to exercise ordinary care to mitigate damages, including by failing to follow reasonable medical advice and by delaying treatment, and any recovery must be reduced accordingly. Third, under Chapter 33 of the Texas Civil Practice and Remedies Code, the trier of fact should determine the percentage of responsibility attributable to Plaintiff and to each responsible third party, and any recovery against Defendant must be reduced in proportion to Plaintiff's own percentage of responsibility, or barred if that percentage exceeds fifty percent.

Defendant reserves the right to amend this answer as discovery proceeds.